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Last minute amendment papers take us even further towards environmental destruction

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Today the government introduced further extensive changes to the Planning Bill and Natural Environment Bill, which will replace the Resource Management Act. The changes are being made via amendment papers, a mechanism for altering proposed legislation at the last minute – after public input and select committee scrutiny.

“These Bills were deeply deficient for the environment when they were introduced, they were made even worse through the majority recommendations of the select committee, and now we have amendment papers that erode them even further,” says EDS Reform Director Dr Greg Severinsen.

“Environmental limits have been weakened yet again. Councils will no longer be able to create a ‘cap’ on resource use to defend a limit. A cap would have described the maximum amount of resource use that could occur without breaching an environmental limit, such as an annual nitrogen discharge cap within a catchment. That’s all been deleted.

"Instead, councils will have to rely on action plans to defend limits. These are non-binding and aren't allowed to even *propose* regulation unless voluntary measures are exhausted first. There's no requirement for regulatory plans to actually include rules that are recommended in action plans.

"The goals of the Natural Environment Bill have been changed to include the protection of "significant indigenous biodiversity". That sounds good, because it more clearly allows for the protection of existing significant natural areas. It's a small win.

"Unfortunately, however, this has replaced the Bill's previous goal of achieving 'no net loss' of indigenous biodiversity. The legislation needs both of these things, not just one.

"The ability for councils to impose more protective rules than those set in national level permitted activity standards has also been further constrained. This means it will be very hard for councils to impose bespoke controls even when an activity is having significant impacts on a particularly sensitive environment.

"Regional councils will no longer have any ability to manage the impacts of fishing on marine biodiversity. Instead, this will be done solely under the utilisation-focused Fisheries Act, which for many years has shown itself not to be up to the task.

"Effects on outstanding natural landscapes and areas of high natural character will also now have to be disregarded entirely if an activity is further than 3 nautical miles from the coast. That's not far – many activities are highly visible at this distance. Think offshore wind and aquaculture.

"Overall, these last-minute changes send the Bills even further in the wrong direction. They are also a missed opportunity to fix up the Bills' existing flaws.

"For example, the goals of the Bills still have no hierarchy. The Minister gets to decide when development is more important than safeguarding the life-supporting capacity of the natural environment. The only new requirement is for the Minister to 'consider' any severe and irreversible effects when prioritising one goal over another. That's not a meaningful guardrail.

"Regulatory relief, which may require councils to compensate landowners for rules on things like biodiversity and landscape, also remains unchanged. As EDS has explained in a recent webinar and *Newsroom* opinion piece, this has the potential to remove vast swathes of environmental protections across the country.

"The environmental limits framework in the Natural Environment Bill is not worthy of the name. It still requires councils to balance the environment against the economic aspirations of communities, and it retains extremely wide exemptions to limits.

"Urban planners will still be hamstrung in their place-shaping efforts because of the narrow scope of the Planning Bill. They're not allowed to think about good urban design, amenity, or character. Greenhouse gas emissions can't be considered either, meaning unfettered urban sprawl.

"And public participation remains extremely limited, with involvement largely confined to those who live or own property in a region.

"These Bills shouldn't pass. If they do, they will require heavy amendment if there is a change of government – possibly even repeal and replacement.

"And the extent of amendments being made this late in the day, without select committee scrutiny or public submissions, reinforces that the Bills are far from ready for enactment," concluded Dr Severinsen.

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